

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2601 of 2008

President, Brikaya Bittohin Samabaya
Samity

..... Plaintiff-Petitioner

-Versus-

Upazila Nirbahi Officer, Singra, Natore
and others

..... Defendant-Opposite Parties

Mr. Probir Neogi, Advocate

..... For the Petitioner

Mr. Yousuf Mahmud Morshed, A.A.G.,

..... For the Opposite Parties

Heard on 14.07.2016 and

Judgment on 25.07.2016

At the instance of the plaintiff-appellant-petitioner, President, Brikaya Bittohin Samabaya Samity, this Rule has been issued calling upon the opposite parties to show cause as to why the judgment and order dated 10.06.2008 passed by the learned District Judge, Natore in Civil Revision No. 25 of 2008 affirming the order dated 24.03.2008 passed by the senior Assistant Judge, Singra, Natore in Other Class Suit No. 189 of 2007 should not be set aside and or pass such other or further order or orders as to this court may seem fit and proper.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioner as the plaintiff filed Other Class Suit No. 189 of 2007 in

the Court of learned Assistant Judge, Singra, Natore against the present opposite parties praying for declaration that the notice issued by the office of the Upazilla Nirbahi Officer, Singra, Natore bearing Memo No. উঃমিঃঅঃ/ Singra/ জনমহল/ 18-2-/06-900 dated 31.05.2007 as being without jurisdiction and inoperative.

The plaint case in brief is that the suit property measuring 4.69 acres appertaining to R.S. Khatian No. 1, plots No. 212 and 327 described in schedule-“Ka” of the plaint was a pond located within surrounding of the government khas land. This pond has been used by the local people for their irrigation. Being a registered Co-operative Samabaya Samity which obtained lease on 16.03.1989 through ejhara settlement case No. 57/88-89 from the local government authority who are the present opposite parties. This property of the government has been under control and management of the Rural Development and Co-operative Ministry. The plaintiff-petitioner obtained lease lastly on 08.11.2003 which expired within 2/3 years but after expiry of the lease the plaintiff applied for extension on 02.04.2007 but the present opposite party No. 1, Upazilla Nirbahi Officer, Singra, Natore and the Deputy Commissioner and the present opposite parties took a decision on 28.05.2007 for inviting tender to lease out the suit pond and khas land. Thereupon, an advertisement was published inviting tender on 31.05.2007. The plaintiff also filed an application for a temporary injunction which was granted by the trial court on 18.06.2007.

The present opposite parties without any vokalatnama filed a written statement controverting the claim of the present petitioner's statement made in the plaint that the suit pond is admittedly a khas property owned by the government which was leased out to the present plaintiff-petitioner for the years 1411-1413 and after the expiry of the said lease this property came back to the government for the management and control by the present opposite parties. There was no easement right upon the said property. The suit properties have been leased out to other persons from time to time. In the said suit the plaintiff filed application on 02.04.2008 stating that the suit has been filed against Bangladesh Public Officer not against the government, therefore, the learned Government Pleader could appear and conduct the case on behalf of the filing the defendant-opposite party without any Vokatnama and sought to reinstate the government pleader to conduct the case. The Assistant Judge rejected the application on 24.03.2008. Challenging the said order the present petitioner Revision No. 25 of 2008 was filed under section 115(2) of the Code of Civil Procedure in the court of learned District- Judge, Natore which was also disallowed on 10.06.2008.

This revisional application has been filed against the said judgment and order and the Rule was issued thereupon.

Mr. Probir Neogi, the learned Advocate appearing for the petitioner submits that having regard to the mandatory provisions of Order 27, Rule 8 of the Code of Civil Procedure, both the courts below committed error of

law resulting in error in decision occasioning failure of justice in rejecting the plaintiff's application dated 04.02. 2008 for reinstating the government pleader from appearing on behalf of the defendants calling for interference by this court.

The learned Advocate further submits that the provisions of Order 27, Rule 8 of the Code of Civil Procedure states that the government cannot undertake the defence of the present suit against public officers, and the Government pleader having not been furnished with any authority to appear and to answer against the plaint because the Government Pleader did not make any application to the court and the court on such application having not caused a note of his authority to be entered in the record in this civil suit, the suit shall proceed as a suit between private parties, and as such the learned District Judge committed an error of law resulting in error in decision occasioning failure of justice in passing the impugned order.

The Rule has been opposed by the opposite parties.

Mr. Yousuf Mahmud Morshed, the learned Assistant Attorney General submits that the learned Trial Judge, clearly noted in his judgment and order dated 24.03.2008 that an vokaltanama has been submitted by the present opposite parties as the defendants and the learned Judge also noted the acceptance of the vokalatnama filed by the government pleader to contest the suit and this finding has been affirmed by the revisional court being the learned District Judge, Natore by passing the impugned judgment

and order dated 10.06.2008 within the frame work of law, including Order 27 Rules 1, 2 and 8 of the C.P.C., therefore, the Rule should be discharged.

The learned Assistant Attorney General also submits that the application made by the present plaintiff-petitioner in the trial court under Order 27 Rule 8 of the Code of C.P.C. is absolutely misleading and fictitious because the learned Advocate for the plaintiff was fully aware of a vokatnama and the trial court made a remark “যাহুতু সরকার পক্ষ প্রতিনিধি হিসাবে জনৈক জি, প, এ, জি, পি মহাদেয়ার অত্র মোকদ্দমা পরিচালনা ক্ষেত্রে কোন বাধা নাই” which is an approval to appear on behalf of the opposite parties as being the government employees as they are authorized as the local government under the Ministry of Local Government and Rural Development (LGRD). Accordingly, the impugned judgment and order has affirmed the findings of the trial court, therefore, no illegality has been committed by the courts below, as such, no interference is called for from this court.

Considering the above submissions made by the learned Advocate appearing for the respective parties and also considering the application filed under section 115(4) of the C.P.C. and the Annexures therein, in particular, the impugned judgment and order passed by the appellate court below, it appears that the present plaintiff-petitioner filed Other Class Suit No. 189 of 2007 which has been contested by the present opposite parties as defendants through the local government pleader by filing a written statement controverting the statement of the plaint. After filing the written statement the present petitioner filed an application under Order 27 Rule 8

C.P.C claiming that the defendant -opposite parties are the public officers, therefore, the government pleader cannot contest the case without furnishing a vokalatnama and obtaining the authority to appear in the suit without filing any vokalatnama executed by the defendant-opposite party. I have carefully examined the application itself for that purpose as well as the order passed by the learned court below. I found from the judgment and order dated 24.03.2008 that a vokalatnama was submitted by the government pleader on behalf of the present defendant-opposite parties and the learned trial court has accepted the vokalatnama and allowed to contest the defendant- opposite parties in the suit.

The present plaintiff-petitioner contends that under Order 27 Rule 8 of the Code of Civil Procedure it is required specific approval from the government to defend any case filed against the present opposite parties who are absolutely performing duties as government employees of Ministry of Local Government and Rural Development i.e. the government of Bangladesh. The present defendant-opposite parties have been performing their duties regarding the matter of government own land as well as the khas land which are not their personal matters but absolutely the matter on behalf of the government.

Order 27 Rule 8, of the Code of Civil Procedure deals with the situation where the Government undertakes the defence in a suit filed against a public officer acting for the Government or the Public officers in their official capacity as the Government Employees including Public

officers who file any suit or contest any suit in their official capacity in which the learned Government Pleader has authority to appear and plead by operation of Order 27 Rules 1 and 2 of C.P.C to act on behalf of the government in any case or to file any case or to contest the suit. In this regard any specific permission is not required. However, the learned Advocate for the petitioner again pointed out Order 27 Rule 8 stating that when a suit is contested by any public officer a court is obliged to cause note of the authority by the government pleader to enter into a civil suit for purpose to contest the suit.

In this regard I am of the view that Order 27 is to read along with other provision of law as a whole because Order 27 including Rules 1 and 2 thus no special notification or special permission is required to appear on behalf of the present opposite parties as the defendants who are the Upazilla Nirbahi Officer, Assistant Commissioner (Land), Upazila Co-operative Officer, Upazilla Fishery Officer and Upazilla Youth Development Officer they are all the public officers as good as the officer of the Local Government who are under absolute control and management of the government. I have noticed the application specifically filed by the present plaintiff-petitioner with an intention to delay and frustrate the government action for inviting tender upon the government property including the pond and khas land which are the absolutely owned and possessed by the present opposite parties on behalf of the government. In such case the present petitioner does not have any locus standi to file an

application with an intention to stop invitation of tender. The present plaintiff-petitioner is nobody to interfere into the auction process of the government property by filing any undesirable application in order to stop invitation of tender regarding the government property. In this regard I am also inclined to note that the plaintiff-petitioner was once a lessee under the present opposite parties but the said lease expired much earlier than the suit filed, therefore, the present opposite parties the government officer/public officer cannot be stopped from carrying on their own obligation as being the government employees. Pursuant to the above discussion I am of the view that this application under Order 27 Rule 8 of the C.P.C. filed in the trial court challenging the authority on the part of the government pleader to contest the suit on behalf of the present opposite parties as being the government officers is a fictitious and filed with a malafide intention to delay the disposal of the suit in order to get unlawful benefit out of it.

Thus, I do not find reason to interference into the impugned judgment and order passed by the learned District Judge, Natore on 10.06.2008.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of stay granted at the time of issuance of the Rule upon further proceeding of the Other Class Suit No. 189 of 2007 pending in the court of Senior Assistant Judge, Singra, Natore is recalled and vacated.

The learned senior Assistant Judge, Natore is directed to conclude the hearing within 4(four) months from the date of receipt of the copy of the judgment and order.

The office is directed to communicate the judgment and order to the concerned court and send down the L.C.R. immediately.